

DRAFT STATEMENT OF OBJECTIVES (SOO)**Department of Homeland Security (DHS)****Office of Health Security (OHS)****Medical Services Strategic Sourcing Vehicle (SSV) for Persons in Custody (PIC) and Related Services****1. Introduction**

The Department of Homeland Security (DHS) requires a comprehensive nationwide healthcare delivery system designed to provide appropriate and necessary care for Persons in Custody (PIC) and the DHS workforce sustaining these operations across DHS components. These medical services include, but are not limited to, licensed medical service professionals, clinical support services, administration and program management, medical equipment, logistics, and medical transportation to meet mission critical needs in both routine and emergency situations. DHS components need the capability to perform these essential functions across diverse settings as PIC navigate through the DHS enterprise.

In accordance with [DHS Directive 060-01](#) “DHS Strategic Sourcing Vehicles are now Mandatory, with Limited Exceptions”, the agency is moving towards an enterprise-wide healthcare approach enabling easier and more efficient procurements by allowing any DHS component to order off this vehicle. This collaborative approach allows for more affordable procurements with improved efficiency ensuring timely and adequate continuity of care across the enterprise.

2. Background

The Department of Homeland Security (DHS) takes a comprehensive approach to national security, public safety, and border security. Individuals encountered by the DHS workforce can present an array of individual health and public health concerns. The DHS Office of Health Security (OHS), led by the DHS Chief Medical Officer, is the principal medical, workforce health and safety, and public health authority for DHS. The OHS, in partnership with Components, implements a framework through which appropriate and standardized care is provided for those in DHS custody and others encountered during DHS operations. OHS also supports an ever-expanding, dynamic, and complex health security landscape in support of DHS operational priorities through policy and operational support of medical services at the Department. This requires a multidisciplinary healthcare workforce that provides medical care to individuals in custody across multiple operating environments, including but not limited to U.S. Immigration and Customs Enforcement (ICE), U.S. Customs and Border Protection (CBP), and the U.S. Coast Guard (USCG). DHS is also responsible for providing care for members of the workforce or a legal traveler that is transiting through a Port of Entry.

OHS will be the responsible office for solicitation, award, and award administration of those requirements represented within this SOO.

The detained population varies across the lifespan, sex, and medical risk, requiring an integrated, agile, and multidisciplinary healthcare delivery system, including medical, dental, mental/behavioral health, pharmacy, obstetric, chronic, pediatric and adolescent care.

3. Scope of Requirements

DHS requires healthcare staffing and equipment services to provide a broad range of services to PIC and, in some situations to the public or other persons not in custody, up to twenty-four hours a day, seven days a week, at various locations throughout the United States (U.S.) and U.S. territories. These services complement the existing federal workforce, including U.S. Public Health Service (USPHS) officers and civilian personnel. These services provide short-term medical care and facilitate access to off-site higher-level care and support to maintain the health of persons in custody (PIC) across DHS components in a variety of performance locations, including remote, mobile, temporary, contingency, and fixed facilities. The care provided is based on nationally recognized correctional, detention, and residential healthcare standards, and in accordance with DHS and component-specific guidance and existing policies.

The contractor will provide medical staffing services, administrative and program management support, logistics, medical transportation, medical equipment and supplies necessary to maintain safe and secure healthcare operations as specified in the subordinate task order. This may include:

- Clinical and support personnel, including but not limited to: Physicians, Physician Assistants/Nurse Practitioners, Registered Nurses, Licensed Practical Nurses, Pharmacists, Emergency Medical Services Clinicians, Certified Medical Assistants, and Certified Nursing Assistants, Allied Health Professionals, Chaplains, Behavioral Health Providers, Dentists, Dental Hygienists, Executive Assistant, Program Support Staff, and Program Manager.
- Access to real time, on demand consultation with specialized medical subject matter experts who can serve as advisors providing support to clinicians in facilities, such as Pediatricians and Obstetricians.
- Temporary and surge staffing solutions capable of meeting urgent or unplanned needs.
- Medical, diagnostic and treatment equipment (e.g., exam tables, monitors, Personal Protective Equipment (PPE), diagnostic kits, medications, vaccines, laboratory supplies, temperature-controlled storage, field-ready equipment).
- Equipment delivery, logistics, medical transportation, installation, maintenance, and recovery services.
- Remote health services may be authorized to meet mission need and may include the following: telemedicine, behavioral health services, and virtual consultation support where feasible.

The scope of services shall be compliant with recognized state and national standards as applicable, DHS defined scope of practice, and with clinical practice guidelines associated with the licensing requirements where the services will take place. Medical services will be available

to all populations, including but not limited to adults, children, adolescents, individuals with disabilities, pregnant women and those with chronic illnesses.

4. Place of Performance

Services may be required across the continental United States, U.S. territories, and other operational locations including, but not limited to, DHS detention centers, ports of entry, mobile units, emergency shelters, field facilities, and other performance locations. Task orders will specify exact performance locations directly associated with awarded order level requirements.

5. Period of Performance

The ordering period of the anticipated Medical Services SSV supporting those objectives represented within this SOO shall be a one-year base ordering period and four, one-year optional ordering periods. Contractors shall have the ability to provide services up to twenty-four hours a day, seven days a week including Federal Holidays. Surge or emergency task orders may require immediate performance for limited durations. Task orders will specify exact performance periods directly associated with awarded order level requirements.

6. Statement of Objectives

DHS has identified seven objectives necessary to deliver safe and secure healthcare in support of the federal government's enforcement activities.

Objective I: Provide medical staffing services, including to both PIC and anyone requiring emergent medical care during DHS operations.

Objective II: Provide logistics, equipment, equipment delivery, medical transportation, supplies, resources, administrative, support, and program management staff necessary to sustain medical operations in support of the DHS mission.

Objective III: Manage medical record information utilizing designated DHS Electronic Medical Record (EMR) systems, ensuring continuity of care and timely transfer of clinical information, while adhering to restrictions on the release of personal information.

Objective IV: Provide a comprehensive pharmaceutical/medication management plan for PIC and anyone requiring emergent medical care during DHS operations.

Objective V: Provide a comprehensive Medical Quality Management and Oversight plan that adheres to nationally recognized standards, including timely reporting of significant events related to the health of a PIC.

Objective VI: Utilize telehealth solutions, mobile diagnostics, and digital scheduling platforms where appropriate to increase access to clinical care and services, as well as enhance operational efficiency.

Objective VII: Submit performance reporting and recommendations for process and quality improvement.

7. Specific Objectives

In developing the work statement, the contractor must address the following objectives for the solicitation.

Objective 1: Provide operational medical staffing services, including to both individuals in custody and anyone requiring emergent medical care during DHS operations.

- Objective 1A: The contractor shall be able to provide the following medical staffing categories, to include but not limited to: medical, mental, and dental health, nursing, radiology, pharmacy, medical records management, chaplain services, allied health, administrative and other support functions at any DHS designated performance location. The appropriate staffing levels and categories required at any designated performance location will be determined by mission requirements and may vary by site and circumstance.
- Objective 1B: The contractor's medical staff shall be able to provide services to PIC at all designated temporary and fixed DHS facilities.
- Objective 1C: The contractor's medical staff shall also provide medical services to anyone requiring urgent and/or emergent medical care during all aspects of DHS operations.
- Objective 1D: The contractor shall maintain a pre-vetted, credentialed staffing pool to support both short-term and long-term assignments across DHS facilities.
- Objective 1E: The contractor shall provide surge staffing capabilities (e.g., emergency response, migrant surges, humanitarian crises) within a certain time period after task order award or notification.
- Objective 1F: The medical services are to include procedures for transfer to and return from local healthcare systems in a timely and effective manner, including communication with outside medical facilities, ensuring continuity of care.
- Objective 1G: The contractor shall propose and implement innovations to improve onboarding timelines, site readiness, and cost efficiency.

Objective 2: Provide logistics, equipment, equipment delivery, medical transportation, supplies, resources, administrative, support, and program management staff necessary to sustain medical operations in support of the DHS mission necessary to sustain medical operations in support of the DHS mission.

- Objective 2A: The contractor shall provide the logistics, medical transportation, and supplies necessary to ensure effective and timely triaging, medical assessments, diagnosis, treatment and transport, as necessary.
- Objective 2B: The contractor shall procure, deliver, and install mission-ready medical equipment and supplies per task order specifications.
- Objective 2C: The contractor shall maintain inventory tracking and condition status for government-furnished and contractor-furnished equipment.

- Objective 2D: The contractor shall have the capability to provide repair, replacement, and maintenance of equipment/supplies as needed.
- Objective 2E: The contractor shall have the capability to equip additional facilities with the required medical equipment during national emergencies, humanitarian crisis, and migrant surges.
- Objective 2F: The contractor shall provide administrative, support, and program management staff necessary to sustain medical operations in support of the DHS mission.

Objective 3: Manage medical record information utilizing the designated DHS Medical Record systems, ensuring continuity of care and timely transfer of clinical information, while adhering to restrictions on the release of personal information.

- Objective 3A: The contractor shall use DHS Electronic Medical Record (EMR) systems (e.g., DHS Medical Information Exchange [MIX]) and DHS Electronic Patient Care Record (ePCR), and other systems as specified by DHS, to document all relevant medical information as required and directed and is responsible for the secure and safe storage of this information for a requisite period.
- Objective 3B: When transferring the PIC and anyone requiring emergent medical care to an outside medical facility is necessary, the contractor shall ensure timely and secure transfer of medical records. The contractor shall also ensure the retrieval and safe and secure storage of medical records from outside facilities.
- Objective 3C: The contractor shall abide by all DHS and component specific privacy requirements, policies, and procedures during documentation, storage and transfer of personally identifiable information (PII), including Personal Health Information (PHI), and sensitive personally identifiable information (SPII).

Objective 4: Provide a comprehensive pharmaceutical/medication management plan for PIC and anyone requiring emergent medical care.

- Objective 4A: The contractor shall conduct medication management for PIC and anyone requiring emergent medical care, including but not limited to the following:
 - a. Verifying appropriateness of prescriptions and medications in their possession.
 - b. Providing medication prescriptions as appropriate.
 - c. Secure storage for medications/prescriptions in their possession.
- Objective 4B: The contractor shall have routine medications immediately available, or a procedure in place to obtain routine medications as soon as operationally feasible. Routine medications will be further defined in the task order.

Objective 5: Provide a comprehensive Medical Quality Management and Oversight plan that adheres to nationally recognized standards.

- Objective 5A: The contractor shall abide by all DHS and component specific medical quality management requirements, policies, and procedures.

- Objective 5B: The contractor shall maintain a quality assurance, performance improvement, and risk management program which focuses on, at a minimum:
 - a. Performance Measures
 - b. Performance Improvement
 - c. Clinical Competency, Skills Verification, and Ongoing Professional Practice Evaluation
 - d. Credentialing Verification & Credentialing Records Auditing
 - e. Risk Management & Assessment
 - f. Records Handling and Storage
 - g. Standard Operating Procedures and Protocols
 - h. Continuing Education and Professional Development
 - i. Prevention of Fraud, Waste and Abuse and Whistleblower Protections
 - j. Preventing, Detecting, and Responding to Sexual Abuse and Harassment
- Objective 5C: The contractor shall document and report significant events¹ related to the health of a PIC while in custody at a performance location where medical contracted support is present.

Objective 6: Utilize telehealth solutions, mobile diagnostics, and digital scheduling platforms where appropriate to increase access to clinical care and services, as well as enhance operational efficiency.

The government will provide policy guidance on clinical services requiring in-person care. The contractors shall develop protocols to determine appropriate modality of care delivery (telehealth vs. in-person) for all other services, consistent with government provided standards and operational requirements.

- Objective 6A: Develop, maintain, and apply clinical guidelines to determine when telehealth services are appropriate and when in-person care is required. Guidelines shall reflect patient acuity, clinical complexity, and the need for physical examination or procedures.
- Objective 6B: Incorporate telehealth services into facility workflows by using digital scheduling platforms or tools that coordinate provider availability, secure exam space, and custody support. Systems shall support real-time coordination and adjustments.
- Objective 6C: Deliver telehealth services in a manner that ensures continuity of care, clinical quality, and proper documentation consistent with applicable DHS and component specific protocols. Referral and escalation procedures to in-person care shall be established and maintained.
- Objective 6D: Ensure that all telehealth encounters are conducted in private, secure settings within the facility and are compliant with the Health Insurance Portability and Accountability Act (HIPAA) and DHS-specific security and consent standards. Informed consent procedures shall be documented and retained.

¹ Significant event- An event in which care resulted in an undesirable clinical outcome, required hospitalization, caused permanent harm, required life-saving intervention, or resulted in death.

- Objective 6E: Provide training to clinical and administrative staff on telehealth use, documentation, escalation protocols, and troubleshooting. The contractor shall monitor performance using mutually agreed-upon metrics (e.g., appointment completion rates, patient satisfaction, referral outcomes).
- Objective 6F: Ensure telehealth operations align with applicable DHS policies. Further policies and procedures, such as those within the National Commission on Correctional Health Care (NCCCHC) standards and Centers for Disease Control and Prevention (CDC), may be identified and leveraged at the task order award level based on task order level requirements.

Objective 7: Submit performance reporting and recommendations for process and quality improvement.

- Objective 7A: Submit, at a minimum, monthly performance reports detailing fill rates, time-to-fill, vacancy coverage, surge response, and retention efforts.
 - Objective 7B: Maintain a centralized dashboard or data system accessible to designated DHS stakeholders.
- Objective 7C: Include quarterly assessments of workforce wellness, burnout indicators, and contractor recommendations for quality improvement.
- Objective 7D: Provide data reports to inform, identify issues, and support medical quality and decisional analysis.

8. Operational Constraints

The contractor shall develop and deliver medical staffing services, administrative and program management support, and medical equipment and supplies necessary to maintain safe and secure healthcare operations to PIC and anyone requiring urgent or emergent medical care in support of the DHS mission in accordance with the following operational constraints:

- **Licensure and Credentialing:**
 - a. Upon hire and for the entire term of the contract, the Contractor shall maintain primary source verification documentation of each provider's professional education, license, registration, or certification.
 - b. The contractors shall ensure the healthcare personnel maintains an applicable unencumbered, active, valid license, registration, or certification perpetually during the contract term, from any U.S. jurisdiction irrespective of the health care provider's permanent or temporary assigned place of official DHS duties.
 - c. The contractor is responsible for and shall ensure compliance with, and monitoring of, all state licensing and board requirements as applicable, for all contract applicable labor categories.
 - d. The Contractor shall establish and maintain a National Practitioner Data Bank (NPBD) account to conduct a pre-hire review of the applicant's credentials and enroll each provider in continuous monitoring for the entire term of the contract.
 - e. The Contractor shall provide, to the Government, a copy of the provider's NPDB query report to ensure there are no infractions or derogatory actions against their

professional license, upon hire, annually, and when an adverse action report is issued.

- f. The contractor shall comply with DHS credentialing audits of contractor credential files for all healthcare providers.
- g. The contractor shall not staff this contract with providers or organizations on the Health and Human Service Office of Inspector General List of Excluded Individuals and Entities, as these individuals and organizations are prohibited from participating in federal health care programs.

The Government reserves the right to adjust this list at any time based on changes in mission, state licensing, registration, and certification requirements, legislation, or other circumstances that dictate changes. Where the requirements are more stringent, the Government will engage the vendor. The contractor will be in compliance with the above referenced requirements for the duration of the contract.

- **Mechanisms for appropriate medical oversight:**
 - a. All Advanced Practice Provider (APP) staff shall be covered under a Collaborative Practice Agreement (CPA) with a contract physician within an agreed upon time frame.
 - b. The provider's signed Component Medical unit checklist shall accompany the signed CPA, where required by Component guidelines.
 - c. The provider shall have medical liability malpractice insurance coverage in compliance with state guidelines, as applicable. Minimum coverage shall be \$1 million per occurrence and \$2 million per aggregate.
- **Detention Standards:** DHS adheres to nationally recognized detention standards of care and is monitored by nationally recognized accreditation bodies. The contractor shall, at a minimum, adhere to these national detention standards. The contractor shall adhere to additional DHS component-specific detention standards and policies as further specified at the task order level. This includes, but is not limited to, the following:
 - a. The Immigration and Nationality Act (INA) as amended, 8 U.S.C. 1101 et seq.
 - b. Homeland Security Act of 2002 (HSA), as amended
 - c. Title 8 Code of Federal Regulations (CFR), as amended
 - d. Occupational Safety and Health Administration (OSHA) as applicable
 - e. Prison Rape Elimination Act (PREA)
 - f. State Welfare Codes, as applicable
 - g. State Licensing Boards as applicable to all labor categories where DHS operates.
 - h. State Departments of Health or other governing entities as applicable
 - i. National Commission on Correctional Health Care Standards (NCCHC), where applicable.
 - j. American Correctional Association (ACA), where applicable.
 - k. ICE Performance Based National Detention Standards (PBNDS) 2011 (and associated revisions), as established for each facility

- l. ICE Family Residential Standards (ICE FRS) - Residential and Family Residential Facilities, where applicable.
- m. ICE Codes of Conduct.
- n. ICE Joint Intake Center (JIC) Reporting Guidance.
- o. CBP National Standards on Transport, Escort, Detention, and Search (TEDS)
- p. IHSC Medical By-Laws
- q. Current DHS and DHS Component Policy, Directives, Guides and Memoranda relating to care-in-custody standards

The Government reserves the right to adjust this list at any time based on changes in mission, detainee health care needs, legislation, or other circumstances that dictate changes in practice. The contractor will be in compliance with the above referenced documents for the duration of the contract.

- **Workforce Qualification and Onboarding:** The contractor is responsible for providing fully qualified staff as defined by each position description. Only fully qualified candidates, or those that have been granted a waiver by the Government, may be submitted to the Personnel Security Unit (PSU) for electronic questionnaires for investigations processing (e-QIP) initiation. Onboarding timelines vary by location. The contractor shall account for these factors in their staffing and transition plans to ensure continuity of care and compliance with applicable regulations.
- **Government-Furnished Systems and Equipment:** The contractor will be responsible for ensuring each of its employees and subcontractor employees completes all new employee orientation requirements. The Government will provide information concerning DHS-specific training annually or as required.
 - a. In certain cases, the contractor may be required to use government-furnished platforms (e.g., electronic medical record (EMR), scheduling systems) and equipment (i.e., laptops, phones). Security clearances, training and adaptation to these systems are expected as part of the solution implementation.
 - b. The Contractor shall reimburse the government of lost or unreturned government furnished equipment, such as, but not limited to PIV card, cell phone, computer etc.
- **Secure Facility Operations:** The contractor will ensure all contractor personnel adhere to DHS and component security requirements relating to facility operations. This includes participating in necessary trainings to understand security protocols and reviewing existing and updated DHS and component operational guidance and policies relating to secure facility operations.
- **Data and information:** The Government has full ownership and shall have full access to all data and information provided, developed, or obtained under the contract and may request regular or ad-hoc reports on operations, staffing, and medical care as necessary.

- **Facility Infrastructure Limitations:** The contractor shall ensure all contractor personnel can work within the constraints in any DHS physical and technical systems to support DHS operations. The contractor will ensure that known, reasonable infrastructure limitations do not hinder successful support of operations.
- **Variable Population:** The contractor will ensure a scalable work proposal to account for variations in populations.
- **Interagency and Multivendor Coordination:** For U. S. Coast Guard participation in this vehicle, all objectives are available to use but shall not be mandatory. This limitation is due to Coast Guard having obligations and agreements with other U. S. Government agencies and organizations to comply with statutory mission requirements and need for organic health services support to meet mission requirements.
- **Compliance requirements:** The contractor will ensure compliance with DHS and component oversight requirements and obligations.

9. Requirements for Success

The contractor shall propose a staffing and equipment model that meets the below objectives while allowing for adaptability, operational continuity and alignment with the DHS mission to safeguard the American people, homeland and values with honor and integrity.

- Ensure continuous provision of qualified medical personnel and necessary medical equipment to support illegal alien healthcare operations, without interruption to essential services.
- Provide licensed and credentialed healthcare professionals who meet or exceed federal, state, and DHS requirements, as applicable, for clinical practice in a correctional environment.
- Demonstrate the ability to scale staffing and equipment resources in response to changing operational demands, including public health emergencies, surges in detainee populations, or mission-critical shifts.
- Ensure all services, staffing practices, and equipment provided support compliance with DHS policies and procedures. Further applicable policies and procedures, such as those within the National Commission on Correctional Health Care (NCCHC) standards, Centers for Disease Control and Prevention (CDC), and Occupational Safety and Health Administration (OSHA), may be identified and leveraged at the task order award level based on task order level requirements.
- Maintain transparent communication and coordination with government-designated representatives, including timely reporting, participation in required meetings, and use of government-furnished systems when required.

- Operate within the unique constraints of secure facilities, ensuring that all staff and equipment processes support PIC safety, personnel safety, and facility operational integrity.

10. Security Language

Sensitive But Unclassified (SBU) Contracts Controlled Unclassified Information (CUI) Contracts

SECURITY REQUIREMENTS

Additional security requirements may be established at the task order award level based on task order level requirements.

PERSONNEL SECURITY

Requests for Exception to U.S. Citizenship Requirement

Special procedures apply for exception to the requirement that persons accessing DHS systems be U.S. citizens. Under normal circumstances, only U.S. citizens are allowed access to DHS systems and networks; but there is a need at times to grant access to foreign nationals. Access for foreign nationals is normally a long-term commitment, and exceptions to citizenship requirements are treated differently from security policy waivers. Exceptions to the U.S. citizenship requirement should be requested by completing a Foreign National Visitor Access Request, DHS Form 11052-1, which is available online or through the DHS Office of the Chief Security Officer (OCSO). Components who have access may file their request via the Foreign National Vetting Management System (FNVMS), a part of the DHS OCSO Integrated Security Management System's (ISMS). For further information regarding the citizenship exception process, contact the DHS OCSO.

This Policy Directive and the DHS 4300A Sensitive Systems Handbook apply to all DHS employees, contractors, detailees, others working on behalf of DHS, and users of DHS information systems that collect, generate, process, store, display, transmit, or receive DHS information unless an approved waiver has been granted. This includes prototypes, telecommunications systems, and all systems in all phases of the Systems Engineering Life Cycle (SELC).

Post-Award Instructions Regarding Security Requirements for Non-Classified Contracts/Orders

The procedures outlined below shall be followed for the DHS Office of the Chief Security Officer (OCSO), Personnel Security Division (PSD) to process background investigations, Entry on Duty determinations, and fitness determinations, as required, in a timely and efficient manner.

Carefully read the security clauses in the contract. Compliance with the security clauses in the contract is not optional.

Contractor employees (to include applicants, temporaries, part-time and replacement employees) under the contract, requiring access to sensitive information, shall undergo a position-sensitivity analysis based on the duties each individual will perform on the contract. The results of the position sensitivity analysis shall identify the appropriate background investigation to be conducted. All background investigations will be processed through the DHS OCSO-HQS PSD. Prospective contractor employees shall complete and submit a combination of the below forms to the DHS OCSO-HQS PSD. The Standard Form (SF) 85 must be completed electronically through the Office of Personnel Management's e-QIP SYSTEM. The SF-85 signature pages and other completed forms must be given to the OCSO-HQS PSD no less than thirty days before the start date of the contract or thirty (30) days prior to the requested entry on duty date, for all contractor employees whether a replacement, addition, subcontractor employee, or vendor.

OCSO-HQS PSD does not process any requests until the contract has been awarded and released from PRISM to FPDS and ERA by extension.

- a. Standard Form (SF) 85 Questionnaire for Public Trust Positions
 - a. SF-85P Certification
 - b. SF-85P Authorization for Release of Medical Information
- b. FD Form 258 Fingerprint Card (2 copies) or Identity Enrollment Services
- c. DHS Form 11000-6 Conditional Access to Sensitive but Unclassified Information Non-Disclosure Agreement
- d. DHS Form 11000-9 Disclosure and Authorization Pertaining to Consumer Reports Pursuant to the Fair Credit Reporting Act
- e. OF-306 Form, Declaration for Federal Employment

Only complete packages will be accepted by the DHS OCSO-HQS PSD. Specific instructions on submission of packages will be provided upon award of the contract.

The DHS OCSO-HQS PSD may, as it deems appropriate, authorize, and grant a favorable Entry on Duty (EOD) decision based on preliminary checks. A favorable EOD decision allows a contractor employee to commence work temporarily prior to the completion of the full background investigation. The granting of a favorable EOD decision shall not be considered as assurance that a favorable fitness determination will follow. In addition, a favorable EOD or fitness determination shall in no way prevent, preclude, or bar DHS from withdrawing or terminating access to government facilities or information, at any time during the term of the contract. No employee of the Contractor shall be allowed unescorted access to a Government facility without a favorable EOD or fitness determination by the DHS OCSO-HQS PSD.

Limited access to Government buildings is allowable without an EOD decision if the Contractor is escorted by a Government employee and the purpose of the visit is to attend a limited number (less than 5) of required briefings or nonrecurring meetings in order to

facilitate the transition of a contract. The intent of this statement is to allow a minimum amount of meetings/transition attendances to prepare for a new contract.

The DHS Security Office shall be notified of all terminations /resignations within five (5) days of occurrence. The Contractor shall return to the Contracting Officer Technical Representative (COR) all DHS issued identification cards and building passes that have either expired or have been collected from terminated employees. If an identification card or building pass is not available to be returned, a report shall be submitted to the COR, referencing the pass or card number, name of individual to who it was issued and the last known location and disposition of the pass or card.

When sensitive Government information is processed on Department telecommunications and automated information systems, the Contractor shall provide for the administrative control of sensitive data being processed. Contractor personnel must have favorably adjudicated background investigations commensurate with the defined sensitivity level. Contractors who fail to comply with Department security policy are subject to having their access to Department IT systems and facilities terminated, whether or not the failure results in criminal prosecution. Any person who improperly discloses sensitive information is subject to criminal and civil penalties and sanctions under a variety of laws (e.g., Privacy Act).

- Failure to follow these instructions may delay the completion of suitability determinations and background checks. Note that any delays in this process that are not caused by the government do not relieve a contractor from performing under the terms of the contract.
- Your POC at the Security Office is:

DHS OCSO/PSD Security Customer Service Center

Telephone: (202) 447-5010

E-mailbox: officeofsecurity@dhs.gov.

PROTECTION OF INFORMATION

Contractor access to information protected under the Privacy Act is required thereunder the IDIQ contract. Contractor employees shall safeguard this information against unauthorized disclosure or dissemination in accordance with the law and Government policy and regulation.

The collection, maintenance, use, dissemination of personally identifiable information and/or sensitive personally identifiable information in performance of this IDIQ contract and any resultant task order shall be governed under the applicable Privacy requirements noted in the following clauses and associated training incorporated therein the IDIQ contract, including:

- HSAR 3052.204-72 Safeguarding of Controlled Unclassified Information,
- HSAR 3052.204-73 Notification and Credit Monitoring Requirements for Personal Identifiable Information Incidents,
- Information Technology Security Awareness Training,

- FAR 52.224-3 Privacy Training – Alternate I (DEVIATION 17-03).

HSAR 3052.204-72 Safeguarding of Controlled Unclassified Information.

As prescribed in (HSAR) 48 CFR 3004.470-4(b), insert the following clause:

SAFEGUARDING OF CONTROLLED UNCLASSIFIED INFORMATION (JULY 2023)

(a) *Definitions.* As used in this clause—

Adequate Security means security protections commensurate with the risk resulting from the unauthorized access, use, disclosure, disruption, modification, or destruction of information. This includes ensuring that information hosted on behalf of an agency and information systems and applications used by the agency operate effectively and provide appropriate confidentiality, integrity, and availability protections through the application of cost-effective security controls.

Controlled Unclassified Information (CUI) is any information the Government creates or possesses, or an entity creates or possesses for or on behalf of the Government (other than classified information) that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls. This definition includes the following CUI categories and subcategories of information:

- (1) Chemical-terrorism Vulnerability Information (CVI) as defined in 6 CFR part 27, “Chemical Facility Anti-Terrorism Standards,” and as further described in supplementary guidance issued by an authorized official of the Department of Homeland Security (including the Revised Procedural Manual “Safeguarding Information Designated as Chemical-Terrorism Vulnerability Information” dated September 2008);
- (2) Protected Critical Infrastructure Information (PCII) as set out in the Critical Infrastructure Information Act of 2002 (title XXII, subtitle B of the Homeland Security Act of 2002 as amended through Pub. L. 116–283), PCII’s implementing regulations (6 CFR part 29), the PCII Program Procedures Manual, and any supplementary guidance officially communicated by an authorized official of the Department of Homeland Security, the PCII Program Manager, or a PCII Program Manager Designee;
- (3) Sensitive Security Information (SSI) as defined in 49 CFR part 1520, “Protection of Sensitive Security Information,” as amended, and any supplementary guidance officially communicated by an authorized official of the Department of Homeland Security (including the Assistant Secretary for the Transportation Security Administration or designee), including Department of Homeland Security MD 11056.1, “Sensitive Security Information (SSI)” and, within the Transportation Security Administration, TSA MD 2810.1, “SSI Program”;
- (4) Homeland Security Agreement Information means information the Department of Homeland Security receives pursuant to an agreement with State, local, Tribal, territorial, or private sector partners that is required to be protected by that agreement. The Department receives this information in furtherance of the missions of the Department, including, but not limited to, support of the Fusion Center Initiative and activities for

cyber information sharing consistent with the Cybersecurity Information Sharing Act of 2015;

(5) Homeland Security Enforcement Information means unclassified information of a sensitive nature lawfully created, possessed, or transmitted by the Department of Homeland Security in furtherance of its immigration, customs, and other civil and criminal enforcement missions, the unauthorized disclosure of which could adversely impact the mission of the Department;

(6) International Agreement Information means information the Department of Homeland Security receives that is required to be protected by an information sharing agreement or arrangement with a foreign government, an international organization of governments or any element thereof, an international or foreign public or judicial body, or an international or foreign private or non-governmental organization;

(7) Information Systems Vulnerability Information (ISVI) means:

(i) Department of Homeland Security information technology (IT) systems data revealing infrastructure used for servers, desktops, and networks; applications name, version, and release; switching, router, and gateway information; interconnections and access methods; and mission or business use/need. Examples of ISVI are systems inventories and enterprise architecture models. Information pertaining to national security systems and eligible for classification under Executive Order 13526 will be classified as appropriate; and/or

(ii) Information regarding developing or current technology, the release of which could hinder the objectives of the Department, compromise a technological advantage or countermeasure, cause a denial of service, or provide an adversary with sufficient information to clone, counterfeit, or circumvent a process or system;

(8) Operations Security Information means Department of Homeland Security information that could be collected, analyzed, and exploited by a foreign adversary to identify intentions, capabilities, operations, and vulnerabilities that threaten operational security for the missions of the Department;

(9) Personnel Security Information means information that could result in physical risk to Department of Homeland Security personnel or other individuals whom the Department is responsible for protecting;

(10) Physical Security Information means reviews or reports illustrating or disclosing facility infrastructure or security vulnerabilities related to the protection of Federal buildings, grounds, or property. For example, threat assessments, system security plans, contingency plans, risk management plans, business impact analysis studies, and certification and accreditation documentation;

(11) Privacy Information includes both Personally Identifiable Information (PII) and Sensitive Personally Identifiable Information (SPII). PII refers to information that can be used to distinguish or trace an individual's identity, either alone, or when combined with other information that is linked or linkable to a specific individual; and SPII is a subset of PII that if lost, compromised, or disclosed without authorization could result in substantial harm, embarrassment, inconvenience, or unfairness to an individual. To

determine whether information is PII, the DHS will perform an assessment of the specific risk that an individual can be identified using the information with other information that is linked or linkable to the individual. In performing this assessment, it is important to recognize that information that is not PII can become PII whenever additional information becomes available, in any medium or from any source, that would make it possible to identify an individual. Certain data elements are particularly sensitive and may alone present an increased risk of harm to the individual.

(i) Examples of stand-alone PII that are particularly sensitive include: Social Security numbers (SSNs), driver's license or State identification numbers, Alien Registration Numbers (A-numbers), financial account numbers, and biometric identifiers.

(ii) Multiple pieces of information may present an increased risk of harm to the individual when combined, posing an increased risk of harm to the individual. SPII may also consist of any grouping of information that contains an individual's name or other unique identifier plus one or more of the following elements:

- (A) Truncated SSN (such as last 4 digits);
- (B) Date of birth (month, day, and year);
- (C) Citizenship or immigration status;
- (D) Ethnic or religious affiliation;
- (E) Sexual orientation;
- (F) Criminal history;
- (G) Medical information; and
- (H) System authentication information, such as mother's birth name, account passwords, or personal identification numbers (PINs).

(iii) Other PII that may present an increased risk of harm to the individual depending on its context, such as a list of employees and their performance ratings or an unlisted home address or phone number. The context includes the purpose for which the PII was collected, maintained, and used. This assessment is critical because the same information in different contexts can reveal additional information about the impacted individual.

Federal information means information created, collected, processed, maintained, disseminated, disclosed, or disposed of by or for the Federal Government, in any medium or form.

Federal information system means an information system used or operated by an agency or by a Contractor of an agency or by another organization on behalf of an agency.

Handling means any use of controlled unclassified information, including but not limited to marking, safeguarding, transporting, disseminating, re-using, storing, capturing, and disposing of the information.

Incident means an occurrence that—

- (1) Actually or imminently jeopardizes, without lawful authority, the integrity, confidentiality, or availability of information or an information system; or

- (2) Constitutes a violation or imminent threat of violation of law, security policies, security procedures, or acceptable use policies.

Information Resources means information and related resources, such as personnel, equipment, funds, and information technology.

Information Security means protecting information and information systems from unauthorized access, use, disclosure, disruption, modification, or destruction in order to provide—

- (1) Integrity, which means guarding against improper information modification or destruction, and includes ensuring information nonrepudiation and authenticity;
- (2) Confidentiality, which means preserving authorized restrictions on access and disclosure, including means for protecting personal privacy and proprietary information; and
- (3) Availability, which means ensuring timely and reliable access to and use of information.

Information System means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information.

(b) *Handling of Controlled Unclassified Information.*

- (1) Contractors and subcontractors must provide adequate security to protect CUI from unauthorized access and disclosure. Adequate security includes compliance with DHS policies and procedures in effect at the time of contract award. These policies and procedures are accessible at <https://www.dhs.gov/dhs-security-and-training-requirements-contractors>.
- (2) The Contractor shall not use or redistribute any CUI handled, collected, processed, stored, or transmitted by the Contractor except as specified in the contract.
- (3) The Contractor shall not maintain SPII in its invoicing, billing, and other recordkeeping systems maintained to support financial or other administrative functions. It is acceptable to maintain in these systems the names, titles, and contact information for the Contracting Officer's Representative (COR) or other government personnel associated with the administration of the contract, as needed.
- (4) Any government data provided, developed, or obtained under the contract, or otherwise under the control of the Contractor, shall not become part of the bankruptcy estate in the event a Contractor and/or subcontractor enters bankruptcy proceedings.

(c) *Incident Reporting Requirements.*

- (1) Contractors and subcontractors shall report all known or suspected incidents to the Component Security Operations Center (SOC) in accordance with Attachment F, *Incident Response*, to DHS Policy Directive 4300A *Information Technology System Security Program, Sensitive Systems*. If the Component SOC is not available, the Contractor shall report to the DHS Enterprise SOC. Contact information for the DHS Enterprise SOC is accessible at <https://www.dhs.gov/dhs-security-and-training-requirements-contractors>. Subcontractors are required to notify the prime Contractor that it has reported a known or suspected incident to the Department. Lower tier subcontractors are required to likewise notify their higher tier subcontractor, until the prime contractor is reached. The Contractor shall also notify the Contracting Officer and COR using the contact information identified in the contract. If the report is made by phone, or the email address

for the Contracting Officer or COR is not immediately available, the Contractor shall contact the Contracting Officer and COR immediately after reporting to the Component or DHS Enterprise SOC.

(2) All known or suspected incidents involving PII or SPII shall be reported within 1 hour of discovery. All other incidents shall be reported within 8 hours of discovery.

(3) CUI transmitted via email shall be protected by encryption or transmitted within secure communications systems. CUI shall be transmitted using a *FIPS 140-2/140-3 Security Requirements for Cryptographic Modules* validated cryptographic module identified on <https://csrc.nist.gov/projects/cryptographic-module-validation-program/validated-modules>. When this is impractical or unavailable, for Federal information systems only, CUI may be transmitted over regular email channels. When using regular email channels, Contractors and subcontractors shall not include any CUI in the subject or body of any email. The CUI shall be included as a password-protected attachment with the password provided under separate cover, including as a separate email. Recipients of CUI information will comply with any email restrictions imposed by the originator.

(4) An incident shall not, by itself, be interpreted as evidence that the Contractor or Subcontractor has failed to provide adequate information security safeguards for CUI or has otherwise failed to meet the requirements of the contract.

(5) If an incident involves PII or SPII, in addition to the incident reporting guidelines in Attachment F, *Incident Response*, to DHS Policy Directive 4300A *Information Technology System Security Program, Sensitive Systems*, Contractors shall also provide as many of the following data elements that are available at the time the incident is reported, with any remaining data elements provided within 24 hours of submission of the initial incident report:

- (i) Unique Entity Identifier (UEI);
- (ii) Contract numbers affected unless all contracts by the company are affected;
- (iii) Facility CAGE code if the location of the event is different than the prime Contractor location;
- (iv) Point of contact (POC) if different than the POC recorded in the System for Award Management (address, position, telephone, and email);
- (v) Contracting Officer POC (address, telephone, and email);
- (vi) Name of subcontractor and CAGE code if this was an incident on a subcontractor network;
- (vii) Government programs, platforms, or systems involved;
- (ix) Location(s) of incident;
- (x) Date and time the incident was discovered;
- (xi) Server names where CUI resided at the time of the incident, both at the Contractor and subcontractor level;
- (xii) Description of the government PII or SPII contained within the system; and
- (xiii) Any additional information relevant to the incident.

(d) *Incident Response Requirements.*

- (1) All determinations by the Department related to incidents, including response activities, will be made in writing by the Contracting Officer.
- (2) The Contractor shall provide full access and cooperation for all activities determined by the Government to be required to ensure an effective incident response, including providing all requested images, log files, and event information to facilitate rapid resolution of incidents.
- (3) Incident response activities determined to be required by the Government may include, but are not limited to, the following:
- (i) Inspections;
 - (ii) Investigations;
 - (iii) Forensic reviews;
 - (iv) Data analyses and processing; and
 - (v) Revocation of the Authority to Operate (ATO), if applicable.
- (4) The Contractor shall immediately preserve and protect images of known affected information systems and all available monitoring/packet capture data. The monitoring/packet capture data shall be retained for at least 180 days from submission of the incident report to allow DHS to request the media or decline interest.
- (5) The Government, at its sole discretion, may obtain assistance from other Federal agencies and/or third-party firms to aid in incident response activities.
- (e) *Certificate of Sanitization of Government and Government-Activity-Related Files and Information.* Upon the conclusion of the contract by expiration, termination, cancellation, or as otherwise indicated in the contract, the Contractor shall return all CUI to DHS and/or destroy it physically and/or logically as identified in the contract unless the contract states that return and/or destruction of CUI is not required. Destruction shall conform to the guidelines for media sanitization contained in NIST SP 800–88, *Guidelines for Media Sanitization*. The Contractor shall certify and confirm the sanitization of all government and government-activity related files and information. The Contractor shall submit the certification to the COR and Contracting Officer following the template provided in NIST SP 800–88, *Guidelines for Media Sanitization*, Appendix G.
- (f) *Other Reporting Requirements.* Incident reporting required by this clause in no way rescinds the Contractor's responsibility for other incident reporting pertaining to its unclassified information systems under other clauses that may apply to its contract(s), or as a result of other applicable statutory or regulatory requirements, or other U.S. Government requirements.
- (g) *Subcontracts.* The Contractor shall insert this clause in all subcontracts and require subcontractors to include this clause in all lower tier subcontracts when subcontractor employees

will have access to CUI; CUI will be collected or maintained on behalf of the agency by a subcontractor; or a subcontractor information system(s) will be used to process, store, or transmit CUI.

(End of clause)

ALTERNATE I (JULY 2023)

When Federal information systems, which include Contractor information systems operated on behalf of the agency, are used to collect, process, store, or transmit CUI, add the following paragraphs:

(h) *Authority to Operate*. The Contractor shall not collect, process, store, or transmit CUI within a Federal information system until an ATO has been granted by the Component or Headquarters CIO, or designee. Once the ATO has been granted by the Government, the Contracting Officer shall incorporate the ATO into the contract as a compliance document. Unless otherwise specified in the ATO letter, the ATO is valid for 3 years. An ATO is granted at the sole discretion of the Government and can be revoked at any time. Contractor receipt of an ATO does not create any contractual right of access or entitlement. The Government's grant of an ATO does not alleviate the Contractor's responsibility to ensure the information system controls are implemented and operating effectively.

(1) *Complete the Security Authorization process*. The Security Authorization (SA) process shall proceed according to DHS Policy Directive 4300A *Information Technology System Security Program, Sensitive Systems* (Version 13.3, February 13, 2023), or any successor publication; and the *Security Authorization Process Guide*, including templates. These policies and templates are accessible at <https://www.dhs.gov/dhs-security-and-training-requirements-contractors>.

(i) *Security Authorization Package*. The SA package shall be developed using the government-provided Security Requirements Traceability Matrix and SA templates. The SA package consists of the following: Security Plan, Contingency Plan, Contingency Plan Test Results, Configuration Management Plan, Security Assessment Plan, Security Assessment Report, and Authorization to Operate Letter. Additional documents that may be required include a Plan(s) of Action and Milestones and Interconnection Security Agreement(s). The Contractor shall submit a signed copy of the SA package, validated by an independent third party, to the COR for review and approval by the Component or Headquarters CIO, or designee, at least 30 days prior to the date of operation of the information system. The Government is the final authority on the compliance of the SA package and may limit the number of resubmissions of modified documents.

(ii) *Independent Assessment.* Contractors shall have an independent third party validate the security and privacy controls in place for the information system(s). The independent third party shall review and analyze the SA package, and report on technical, operational, and management level deficiencies as outlined in NIST SP 800–53, *Security and Privacy Controls for Information Systems and Organizations*, or successor publication, accessible at <https://csrc.nist.gov/publications/sp>. The Contractor shall address all deficiencies before submitting the SA package to the COR for review.

(2) *Renewal of ATO.* Unless otherwise specified in the ATO letter, the Contractor shall renew the ATO every 3 years. The Contractor is required to update its SA package as part of the ATO renewal process for review and verification of security controls. Review and verification of security controls is independent of the system production date and may include onsite visits that involve physical or logical inspection of the Contractor environment to ensure controls are in place. The updated SA package shall be submitted for review and approval by the Component or Headquarters CIO, or designee, at least 90 days before the ATO expiration date. The Contractor shall update its SA package by one of the following methods:

- (i) Updating the SA package in the DHS Information Assurance Compliance System; or
- (ii) Submitting the updated SA package directly to the COR.

(3) *Security Review.* The Government may elect to conduct periodic reviews to ensure that the security requirements contained in the contract are being implemented and enforced. The Government, at its sole discretion, may obtain assistance from other Federal agencies and/or third-party firms to aid in security review activities. The Contractor shall afford DHS, the Office of the Inspector General, other government organizations, and Contractors working in support of the Government access to the Contractor's facilities, installations, operations, documentation, databases, networks, systems, and personnel used in the performance of this contract. The Contractor shall, through the Contracting Officer and COR, contact the Component or Headquarters CIO, or designee, to coordinate and participate in review and inspection activity by government organizations external to DHS. Access shall be provided, to the extent necessary as determined by the Government (including providing all requested images), for the Government to carry out a program of inspection, investigation, and audit to safeguard against threats and hazards to the integrity, availability, and confidentiality of government data or the function of computer systems used in performance of this contract and to preserve evidence of computer crime.

(4) *Federal Reporting and Continuous Monitoring Requirements.* Contractors operating information systems on behalf of the Government shall comply with Federal reporting and information system continuous monitoring requirements. Reporting requirements are

determined by the Government and are defined in the Fiscal Year 2015 DHS Information Security Performance Plan, or successor publication, accessible at <https://www.dhs.gov/dhs-security-and-training-requirements-contractors>. The plan is updated on an annual basis. Annual, quarterly, and monthly data collection will be coordinated by the Government. The Contractor shall provide the Government with all information to fully satisfy Federal reporting requirements for information systems. The Contractor shall provide the COR with requested information within 3 business days of receipt of the request. Unless otherwise specified in the contract, monthly continuous monitoring data shall be stored at the Contractor's location for a period not less than 1 year from the date the data are created. The Government may elect to perform information system continuous monitoring and IT security scanning of information systems from government tools and infrastructure.

(End of clause)

3052.204-73 NOTIFICATION AND CREDIT MONITORING REQUIREMENTS FOR PERSONALLY IDENTIFIABLE INFORMATION INCIDENTS (JULY 2023)

(a) *Definitions.* Privacy Information includes both Personally Identifiable Information (PII) and Sensitive Personally Identifiable Information (SPII). PII refers to information that can be used to distinguish or trace an individual's identity, either alone, or when combined with other information that is linked or linkable to a specific individual; and SPII is a subset of PII that if lost, compromised, or disclosed without authorization could result in substantial harm, embarrassment, inconvenience, or unfairness to an individual. To determine whether information is PII, the DHS will perform an assessment of the specific risk that an individual can be identified using the information with other information that is linked or linkable to the individual. In performing this assessment, it is important to recognize that information that is not PII can become PII whenever additional information becomes available, in any medium or from any source, that would make it possible to identify an individual. Certain data elements are particularly sensitive and may alone present an increased risk of harm to the individual.

(1) Examples of stand-alone PII that are particularly sensitive include: Social Security numbers (SSNs), driver's license or State identification numbers, Alien Registration Numbers (A-numbers), financial account numbers, and biometric identifiers.

(2) Multiple pieces of information may present an increased risk of harm to the individual when combined, posing an increased risk of harm to the individual. SPII may also consist of any grouping of information that contains an individual's name or other unique identifier plus one or more of the following elements:

- (i) Truncated SSN (such as last 4 digits);
- (ii) Date of birth (month, day, and year);

- (iii) Citizenship or immigration status;
- (iv) Ethnic or religious affiliation;
- (v) Sexual orientation;
- (vi) Criminal history;
- (vii) Medical information; and
- (viii) System authentication information, such as mother's birth name, account passwords, or personal identification numbers (PINs).

(3) Other PII that may present an increased risk of harm to the individual depending on its context, such as a list of employees and their performance ratings or an unlisted home address or phone number. The context includes the purpose for which the PII was collected, maintained, and used. This assessment is critical because the same information in different contexts can reveal additional information about the impacted individual.

(b) PII and SPII Notification Requirements.

(1) No later than 5 business days after being directed by the Contracting Officer, or as otherwise required by applicable law, the Contractor shall notify any individual whose PII or SPII was either under the control of the Contractor or resided in an information system under control of the Contractor at the time the incident occurred. The method and content of any notification by the Contractor shall be coordinated with, and subject to prior written approval by, the Contracting Officer. The Contractor shall not proceed with notification unless directed in writing by the Contracting Officer.

(2) All determinations by the Department related to notifications to affected individuals and/or Federal agencies and related services (e.g., credit monitoring) will be made in writing by the Contracting Officer.

(3) Subject to government analysis of the incident and direction to the Contractor regarding any resulting notification, the notification method may consist of letters to affected individuals sent by first-class mail, electronic means, or general public notice, as approved by the Government. Notification may require the Contractor's use of address verification and/or address location services. At a minimum, the notification shall include:

- (i) A brief description of the incident;
- (ii) A description of the types of PII or SPII involved;
- (iii) A statement as to whether the PII or SPII was encrypted or protected by other means;
- (iv) Steps individuals may take to protect themselves;
- (v) What the Contractor and/or the Government are doing to investigate the incident, mitigate the incident, and protect against any future incidents; and
- (vi) Information identifying who individuals may contact for additional information.

(c) Credit Monitoring Requirements. The Contracting Officer may direct the Contractor to:

- (1) Provide notification to affected individuals as described in paragraph (b).
- (2) Provide credit monitoring services to individuals whose PII or SPII was under the control of the Contractor or resided in the information system at the time of the incident for a period beginning the date of the incident and extending not less than 18 months from the date the individual is notified. Credit monitoring services shall be provided from a company with which the Contractor has no affiliation. At a minimum, credit monitoring services shall include:
- (i) Triple credit bureau monitoring;
 - (ii) Daily customer service;
 - (iii) Alerts provided to the individual for changes and fraud; and
 - (iv) Assistance to the individual with enrollment in the services and the use of fraud alerts.
- (3) Establish a dedicated call center. Call center services shall include:
- (i) A dedicated telephone number to contact customer service within a fixed period;
 - (ii) Information necessary for registrants/enrollees to access credit reports and credit scores;
 - (iii) Weekly reports on call center volume, issue escalation (i.e., those calls that cannot be handled by call center staff and must be resolved by call center management or DHS, as appropriate), and other key metrics;
 - (iv) Escalation of calls that cannot be handled by call center staff to call center management or DHS, as appropriate;
 - (v) Customized Frequently Asked Questions, approved in writing by the Contracting Officer in coordination with the Component or Headquarters Privacy Officer; and
 - (vi) Information for registrants to contact customer service representatives and fraud resolution representatives for credit monitoring assistance.

(End of clause)

INFORMATION TECHNOLOGY SECURITY AWARENESS TRAINING (JULY 2023)

(a) *Applicability.* This clause applies to the Contractor, its subcontractors, and Contractor employees (hereafter referred to collectively as “Contractor”). The Contractor shall insert the substance of this clause in all subcontracts.

(b) *Security Training Requirements.*

(1) All users of Federal information systems are required by Title 5, Code of Federal Regulations, Part 930.301, Subpart C, as amended, to be exposed to security awareness materials annually or whenever system security changes occur, or when the user’s responsibilities change. The Department of Homeland Security (DHS) requires that Contractor employees take an annual Information Technology Security Awareness Training course before accessing sensitive information under the contract. Unless otherwise specified, the training shall be completed within thirty (30) days of contract award and be completed on an annual basis thereafter not later than October 31st of each year. Any new Contractor employees assigned to the contract shall

complete the training before accessing sensitive information under the contract. The training is accessible at <http://www.dhs.gov/dhs-security-and-training-requirements-contractors>. The Contractor shall maintain copies of training certificates for all Contractor and subcontractor employees as a record of compliance. Unless otherwise specified, initial training certificates for each Contractor and subcontractor employee shall be provided to the Contracting Officer's Representative (COR) not later than thirty (30) days after contract award. Subsequent training certificates to satisfy the annual training requirement shall be submitted to the COR via e-mail notification not later than October 31st of each year. The e-mail notification shall state the required training has been completed for all Contractor and subcontractor employees.

(2) The DHS Rules of Behavior apply to every DHS employee, Contractor and subcontractor that will have access to DHS systems and sensitive information. The DHS Rules of Behavior shall be signed before accessing DHS systems and sensitive information. The DHS Rules of Behavior is a document that informs users of their responsibilities when accessing DHS systems and holds users accountable for actions taken while accessing DHS systems and using DHS Information Technology resources capable of inputting, storing, processing, outputting, and/or transmitting sensitive information. The DHS Rules of Behavior is accessible at <http://www.dhs.gov/dhs-security-and-training-requirements-contractors>. Unless otherwise specified, the DHS Rules of Behavior shall be signed within thirty (30) days of contract award. Any new Contractor employees assigned to the contract shall also sign the DHS Rules of Behavior before accessing DHS systems and sensitive information. The Contractor shall maintain signed copies of the DHS Rules of Behavior for all Contractor and subcontractor employees as a record of compliance. Unless otherwise specified, the Contractor shall e-mail copies of the signed DHS Rules of Behavior to the COR not later than thirty (30) days after contract award for each employee. The DHS Rules of Behavior will be reviewed annually, and the COR will provide notification when a review is required.

(End of clause)

FAR 52.224-3 Privacy Training – Alternate I (DEVIATION 17-03) (July 2023)

(a) *Definition.* As used in this clause, personally identifiable information means information that can be used to distinguish or trace an individual's identity, either alone or when combined with other information that is linked or linkable to a specific individual. (See Office of Management and Budget (OMB) Circular A-130, Managing Federal Information as a Strategic Resource).

(b) The Contractor shall ensure that initial privacy training, and annual privacy training, thereafter, is completed by contractor employees who—

- (1) Have access to a system of records;
- (2) Create, collect, use, process, store, maintain, disseminate, disclose, dispose, or otherwise handle personally identifiable information on behalf of an agency; or
- (3) Design, develop, maintain, or operate a system of records (see also FAR subpart 24.1 and 39.105).

(c) The contracting agency will provide initial privacy training, and annual privacy training thereafter, to Contractor employees for the duration of this contract. Contractor employees shall satisfy this requirement by completing *Privacy at DHS: Protecting Personal Information* accessible at <http://www.dhs.gov/dhs-security-and-training-requirements-contractors>. Training shall be completed within 30 days of contract award and be completed on an annual basis thereafter not later than October 31st of each year.

(d) The Contractor shall maintain and, upon request, provide documentation of completion of privacy training to the Contracting Officer.

(e) The Contractor shall not allow any employee access to a system of records, or permit any employee to create, collect, use, process, store, maintain, disseminate, disclose, dispose or otherwise handle personally identifiable information, or to design, develop, maintain, or operate a system of records unless the employee has completed privacy training, as required by this clause.

(f) The substance of this clause, including this paragraph (f), shall be included in all subcontracts under this contract, when subcontractor employees will—

(1) Have access to a system of records;

(2) Create, collect, use, process, store, maintain, disseminate, disclose, dispose, or otherwise handle personally identifiable information; or

(3) Design, develop, maintain, or operate a system of records.

(End of clause)